

1. Line 36 through 55:

36 **53E-9-311** Disclosure of educational data -- Informed consent -- Access and
 37 disclosure.
 38 (1) As used in this section:
 39 $\hat{H} \rightarrow [\{ \textcolor{blue}{(a)} \text{ "Bona fide educational purpose" means a need to access a student's educational}$
 39a $\text{data} \}] \leftarrow \hat{H}$
 40 $\hat{H} \rightarrow [\{ \text{to provide services to the student directly related to the student's:} \}]$
 41 $[\{ \textcolor{blue}{(i)} \text{ educational program; or} \}]$
 42 $[\{ \textcolor{blue}{(ii)} \text{ participation in the workforce following completion of the student's educational} \}]$
 43 $\leftarrow \hat{H}$
 43 $\hat{H} \rightarrow [\{ \text{program.} \}]$
 44 $[\{ \textcolor{blue}{(b)} \}] \textcolor{red}{(a)} \leftarrow \hat{H}$ "Educational data" means a student's:
 45 (i) transcript data;
 46 (ii) enrollment information;
 47 (iii) course history; and
 48 (iv) academic credentials.
 49 $\hat{H} \rightarrow [\{ \textcolor{blue}{(c)} \}] \textcolor{red}{(b)} \leftarrow \hat{H}$ "Informed consent" means the same as that term is defined in
 49a Section 53H-7-1001.
 50 (2) In accordance with the Family Educational Rights and Privacy Act, 20 U.S.C. Sec.
 51 1232g, this chapter, and other relevant state and federal privacy laws, $\hat{H} \rightarrow \textcolor{red}{a} \leftarrow \hat{H}$ student
 51a who is
 52 currently enrolled in, or has previously been enrolled in, an education entity $\hat{H} \rightarrow \textcolor{red}{,} \leftarrow \hat{H}$ $\hat{H} \rightarrow$
 52a **or a parent if the student is under 18 years old,** $\leftarrow \hat{H}$ has the right
 53 to:
 54 (a) access the student's educational data; and
 55 (b) authorize access to the student's educational data in accordance with this section.

2. Line 79 through 87:

79 (ii) prevents the student from requesting renewed access; or
 80 (iii) limits the student's ability to provide informed consent for disclosure of the
 81 student's educational data.

115 $\hat{H} \rightarrow [\{ (1) \text{ "Bona fide educational purpose" means the same as that term is defined in} }]$
 115a Section }
 116 53E-9-311. }]
 117 [{ (2) }] (1) $\leftarrow \hat{H}$ "Educational data" means a student's:
 118 (a) transcript data;
 119 (b) enrollment information;
 120 (c) course history; and
 121 (d) academic credentials.
 122 $\hat{H} \rightarrow [\{ (3) \}] (2) \leftarrow \hat{H}$ "Informed consent" means voluntary, affirmative, written
 122a authorization complying with
 123 the requirements of 34 C.F.R. Sec. 99.30 that a student provides after the individual is
 124 presented, in a clear manner, with sufficient information to reasonably understand:

5. *Line 153 through 165:*

153 (i) clearly disclose the limitation at the time the institution grants access; and
 154 (ii) provide a reasonable mechanism that allows a student to re-access educational
 155 data after the expiration of a time-based or session-based limitation.
 156 (3) $\hat{H} \rightarrow [\{ \text{An} \}]$ Except as provided in the Family Educational Rights and Privacy Act,
 156a 20 U.S.C. Sec. 1232g, an $\leftarrow \hat{H}$ institution shall disclose a student's educational data under
 156b this section only:
 157 (a) with the informed consent of the student;
 158 (b) according to the terms of the document expressing the informed consent of the
 159 student; $\hat{H} \rightarrow$ and
 160 [{ (c) if the purpose of the disclosure stated in the document expressing the informed }]
 $\leftarrow \hat{H}$
 161 $\hat{H} \rightarrow [\{ \text{consent of the student to the disclosure demonstrates a bona fide educational purpose}
 }] \leftarrow \hat{H}$
 162 $\hat{H} \rightarrow [\{ \text{for the student's educational data; and} \}]$
 163 [{ (d) }] (c) $\leftarrow \hat{H}$ subject to the agreement of the third party receiving the student's
 163a educational data:
 164 (i) to use the student's educational data only as provided in the document expressing
 165 the informed consent of the student to the disclosure; and